

25LBCV01615 25LBCV01615

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-02

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Case Number: 25LBCV01615 Hearing Date: July 2, 2026 Dept: S27

Background Facts

Plaintiff, Carol Kennard filed this action against Defendants, Amir Sheikh and Does 1-6 for invasion of privacy and related claims. On 6/16/25, Plaintiff filed her operative First Amended Complaint, which is stated against City Place Lofts LLC and Does 1-6. It includes causes of action for invasion of privacy, retaliatory rent increase, housing harassment, civil rights violations, conspiracy to interfere with civil rights, violation of the Fair Housing Act, and battery.

On 10/31/25, at a Case Management Conference, Plaintiff made clear that she is no longer pursuing claims against Le Lycee Francais de Los Angeles, which was dismissed. It is not clear how this entity was ever brought into the case, but it is no longer a defendant, to the extent it ever was.

On 1/08/26, the Court heard and sustained City Place Lofts, LLC's demurrer to the First Amended Complaint without leave to amend.

6/16/26 Hearing on Motion
to Vacate

Plaintiff moved to vacate the 1/08/26 ruling on the demurrer pursuant to CCP §473(b), and sought leave to file a Second Amended Complaint omitting the Senate Bill 53 claims and instead pleading intrusion upon seclusion, negligence, breach of quiet enjoyment,

private nuisance, and declaratory relief claims.

On 6/16/26, the Court denied the motion, and the dismissal following the ruling sustaining the demurrer stands.

Motion to Strike or
Tax Costs

On 1/29/26, Defendant filed a memorandum of costs. Defendant seeks to recover \$435 for filing its responsive pleading and \$35.48 in fees for electronic filing or service.

On 2/13/26, Plaintiff filed a motion to strike or tax costs. She sought an order either taxing/striking/reducing the claimed costs or deferring the ruling on the motion until after the Court determined whether to vacate the judgment in favor of Defendant.

The Court has already heard and denied the motion to vacate. Plaintiff failed to articulate why any claimed costs should be stricken, taxed, or reduced. The Court has reviewed the memorandum of costs and finds it is appropriate on its face. Despite the lack of timely opposition to the motion, the motion is denied. It is denied due to lack of authority and lack of argument concerning the claimed costs.

Defendant is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear

remotely.